FREE LEGAL GUIDE #5

Cybercrime Defence Guide

IT Act and BNS 2023

What to do if accused of hacking, fraud, harassment, or identity theft online

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Cybercrime Defence: Your Legal Options Under the IT Act and BNS

Cybercrime cases are growing rapidly in India, and they are frequently mishandled — both by investigating agencies and by individuals who do not understand their rights. Whether you face allegations of hacking, online fraud, harassment, defamation, or identity theft, this guide explains the law and your legal options.

> Adv. Akash Chikate holds an LLM in Science & Technology Laws (First Class Distinction) and a Diploma in Cyber Laws — specialisations directly relevant to cybercrime defence matters.

COMMON CYBERCRIME CHARGES AND THE APPLICABLE LAW

Allegation	IT Act Section	BNS Section
Hacking / Unauthorised access	S.66 IT Act	S.316 BNS
Online fraud / cheating	S.66D IT Act	S.318 BNS
Identity theft	S.66C IT Act	S.319 BNS
Cyber stalking / harassment	S.67 IT Act	S.351(3) BNS
Obscene material publication	S.67 / 67A IT Act	S.294 BNS
Child sexual abuse material (CSAM)	S.67B IT Act	POCSO + BNS
Defamation (online/WhatsApp)	—	S.356 BNS
Investment/trading app fraud	S.66D IT Act	S.318/316 BNS

UNIQUE CHALLENGES IN CYBERCRIME DEFENCE

● Digital Evidence Is Easily Manipulated and Fabricated

Unlike physical evidence, digital evidence — screenshots, chat logs, call records — can be fabricated, edited, or taken out of context. Your lawyer must challenge the authenticity and chain of custody of all digital evidence presented by the prosecution.

● IP Address Evidence Is Unreliable Alone

An IP address traces to a router or network, not to an individual device or person. Without forensic evidence linking a specific device to the IP, an IP address alone is insufficient to prove an offence.

Many innocent people are accused solely based on IP logs.

● Electronic Records Must Meet Section 63 BSA Standards

Under the Bharatiya Sakshya Adhiniyam (BSA) 2023, electronic records are admissible only if accompanied by a certificate from a responsible official. Improperly certified digital evidence is inadmissible — this is a major defence tool in cybercrime cases.

● Jurisdictional Complexity

Cybercrimes can be registered across multiple police stations — wherever the complainant is located. This creates a risk of multiple FIRs for the same incident. Your lawyer can file for quashing of duplicate FIRs or transfer petitions.

STEPS TO TAKE IF ACCUSED OF A CYBERCRIME

Do Not Delete Anything

Do not delete any message, chat, email, or file from your devices. Deletion can be seen as tampering with evidence and creates a negative inference in court. Preserve everything.

Secure Your Devices Legally

If you believe police may seize your devices, consult a lawyer about the procedure for lawful seizure under Section 94 BNSS and what to expect. Do not resist seizure — it is lawful if conducted with a proper warrant or valid grounds.

Obtain an Image of the Evidence

Before police seize devices, if possible, request that a forensic image (mirror copy) be made and that you receive a certified copy. This ensures you can verify what was on the device and challenge any alterations.

Contact a Lawyer with Cyber Law Expertise

Cybercrime investigations involve specialised procedures. Engage a lawyer with knowledge of the IT Act, BSA digital evidence standards, and forensic investigation procedures. General criminal lawyers may not have the relevant expertise.

Apply for Anticipatory Bail If Needed

If an FIR has been registered but you have not yet been arrested, consider applying for anticipatory bail immediately. Cybercrime investigations often move quickly once an FIR is filed.

KEY DEFENCE STRATEGIES

- ■ Challenge the authenticity and admissibility of all digital evidence under BSA 2023
- ■ Request forensic examination of original devices — not police-prepared summaries
- ■ Challenge the Section 63 BSA certificate: Was it issued by a responsible official?
- ■ Scrutinise the chain of custody from seizure to FSL to court

- File for quashing of FIR if the allegation lacks prima facie substance (HC Writ Petition)
- In defamation / harassment cases — examine if the accused had the means and motive
- IP address alone is not proof — request the technical investigation report in full
- Challenge any statement recorded under Section 161 BNSS if given without legal advice

Cybercrime cases often hinge entirely on technical evidence. A lawyer who understands both the law and the technology can identify flaws in the investigation that are invisible to a non-specialist. Adv. Akash Chikate's LLM in Science & Technology Laws is directly relevant here.

Need Legal Help? Contact Us Now

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This guide is for general informational purposes only and does not constitute legal advice. Outcomes in legal matters vary based on facts and circumstances. Consult a qualified advocate for advice specific to your matter. Advocate Akash Chikate — Bar Council of India Licensed Advocate.